

WP NO. 3832/2026 (KLR - RES) Connected Cases: WP NO. 38324/2025, WP NO. 5271/2026, WP NO. 6762/2026

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

[MR.SOMASHEKARAIHAH VS. THE STATE OF KARNATAKA AND
OTHERS]

24.03.2026

(VIDEO CONFERENCING / PHYSICAL HEARING)

CORAM: HON'BLE MR. JUSTICE R DEVDAS

COMMON ORDER

In all these writ petitions, a common prayer is regarding the challenge raised to the recent amendment brought to Section 136(1) of the Karnataka Land Revenue Act, 1956, in Karnataka Act No.6 of 2025 (for short, Amendment Act), viz., the Karnataka Land Revenue (Third Amendment) Act, 2024. Therefore, as a preliminary issue regarding the challenge raised to the Amendment Act, these matters were heard and the preliminary issue regarding the challenge raised to the Amendment Act, 2024 is decided by this common order.

2. By the Amendment Act, in Section 136, in sub-section (1), the word "not" was omitted. For an easy understanding of the effect of the amendment, Section 136 (1) which stood as it was before amendment and the amended provision are extracted herein below:

"136. Appeal and Revision.—(1) The provisions of Chapter V shall not apply to any decision or order under this Chapter."

"Amended Section 136. —(1) The provisions of Chapter V shall apply to any decision or order under this Chapter."

3. Learned Senior Counsel Sri.D.R.Ravishankar, appearing for some of the petitioners, submitted that by removing the word "not" the State Legislature seeks to apply Chapter V to Section 136 of the Act. The unamended provision clearly seeks not to apply the provision of Chapter V to Section 136. The wisdom of the legislature, earlier was not to apply the provisions of Chapter V to Section 136, having regard to the nature of the subject dealt with in Chapter XI, pertaining to the Record of Rights. The legislature felt, owing to the nature of the subject viz., Record of Rights, the dispute should be decided from the level of the Tahsildar to the Deputy Commissioner, unlike Chapter V which dealt with all other disputes and therefore, the provisions of Chapter V was not made applicable to Chapter XI. In Chapter V, under Section 49, remedy in respect of all original orders were provided in the form of a first appeal. Under Section 50,

provision is made for a second appeal. A remedy of revision is also provided for in the form of Section 56. However, a Full Bench of this Court in the case of **SRI.ASHOK VS. SRI.PANDURANG AND OTHERS¹**, held that the word 'final' appearing in Section 136(2) cannot take away the right of the aggrieved party to challenge the order of the appellate authority (Assistant Commissioner) before the Deputy Commissioner, who is the highest authority of the Revenue District/Court, by way of revision petition, before approaching the law courts. Nevertheless, having regard to the language employed in the provision and also bearing in mind the entire scheme of the Act, it was held that a remedy of revision can be availed of under Section 136(3) of the Act, before the Deputy Commissioner.

4. Learned Senior Counsel further submitted that the Hon'ble Supreme Court in the case of **PUTTAHONNAMMA VS. C GANGADHARA MURTHY AND OTHERS²**, has held, while dealing with Chapter V of the Act, that if a party

¹ ILR 2012 KAR 4571

² (1996) 8 SCC 483

aggrieved by an order passed in a first appeal has availed of the remedy of second appeal under Section 50 he is precluded from again availing the revision remedy under Section 56. It does not follow that the party who had not availed of the second appellate remedy under Section 50 is also prohibited from filing a revision petition under Section 56. Having regard to the scheme of the Act, and the hierarchy of remedial fora prescribed, it was held that a person aggrieved of the order passed by the appellate authority under Section 49, could either avail of a second appeal under Section 50 or a revision under Section 56 and not both.

5. Learned Senior Counsel therefore submitted that if the State Legislature sought to amend the provision with an objective of providing one more tier in the hierarchy of remedial fora and to lessen the burden on the High Court, it cannot achieve the objective by merely reading in Chapter V into Section 136 of the Act. Learned Senior Counsel submitted that the earlier wisdom of providing quick remedy to resolve disputes arising from the Record

of Rights is sought to be tampered with by the impugned amendment. Moreover, the stated objective cannot be achieved having regard to the law declared by the Hon'ble Supreme Court in the case of **PUTTAHONNAMMA**². There cannot be a revisional remedy if a person has invoked the second appeal remedy. It is further submitted that the impugned amendment is manifestly arbitrary, since the State Legislature seeks to provide for an additional tier of remedial fora, quite contrary to the earlier view of providing quick and effective remedy for resolution of disputes arising out of Record of Rights. On this ground alone, the impugned amendment is required to be quashed and set aside. In this regard learned Senior Counsel placed reliance on **HINDUSTAN CONSTRUCTION COMPANY LTD., AND ANOTHER VS. UNION OF INDIA AND OTHERS**³.

6. Learned Counsel Sri.K.Vijaykumar, appearing for the petitioner in W.P.No.38324/2025 submitted that by the impugned amendment the State Legislature seeks to

² (1996) 8 SCC 483

³ (2020) 17 SCC 324

reintroduce multiple layers or appeal/revision remedy in the matter of mutation of Record of Rights, which were consciously avoided by the legislature earlier. It is submitted that in the matter of mutation of Record of Rights the Deputy Commissioner should be the final authority. It is submitted that the impugned amendment has also created confusion, since there is no clarity as to whether the State Legislature seeks to provide for a revision of a revisional order or whether a further appeal is sought to be provided on a revision order. Learned Counsel submitted that there cannot be a further appeal or revision on a second appellate order. The amendment nullifies settled law without removing the basis of the judgment in the case of **Sri.Ashok¹ and Puttahonnamma²**. The amendment does not define the scope, nature or limitations of the appeal/revision to the Karnataka Appellate Tribunal, on an order passed by the Deputy Commissioner under Section 136(3) of the Act. The amendment does not clarify whether such

¹ ILR 2012 KAR 4571

² (1996) 8 SCC 483

proceedings are appeals or revisions. It is submitted that revenue proceedings relating to mutation and Record of Rights are intended to be summary in nature. The impugned amendment defeats the principle of finality of revenue proceedings. It encourages endless litigation, contrary to legislative intent. The amendment is inconsistent with the scheme of Chapter XI which deals with Record of Rights. It is submitted that mutation entries and maintenance of Record of Rights, which do not confer title are now sought to be subjected to prolonged adjudicatory disputes, defeating administrative efficiency.

7. Per contra, Sri. Kiran V Ron, learned Additional Advocate General (for short, AAG), appearing for the respondent-State submitted while pointing out to the statement of objections filed on behalf of the respondent-State, that the State Legislature has taken note of the fact that large number of writ petitions are being filed before this Court challenging the orders passed by the Deputy Commissioners/Special Deputy Commissioners under Section 136(3) of the Act, and therefore, to remedy the

aforesaid situation and to provide an efficacious statutory alternative to writ petitions, the State Legislature, in its wisdom took note of the existence and competence of the Karnataka Revenue Appellate Tribunal and consciously envisaged that the Tribunal which is fully equipped to adjudicate revenue disputes should serve as another layer to decide and settle the disputes. It is submitted that the composition of the Tribunal which consists of a Judicial Member and an Administrative Member would lend institutional credibility and ensures a high degree of judicial scrutiny. Further, the petitioners cannot cry hoarse that one more tier of dispute resolution forum is being provided for. Learned AAG submitted that such contentions do not constitute substantial grounds for setting aside an amendment brought to the statute. It is submitted that the petitioners have not questioned the competence of the State Legislature in enacting the amendment, nor are the petitioners contending violation of the rights guaranteed in part III of the Constitution of

India. That being the position, the challenge raised to the impugned amendment should fail.

8. Learned AAG further submitted that having regard to the law laid down by the Apex Court in the case of **Puttiahonnamma**², and having regard to the provisions contained in Chapter V of the Act, a revisional remedy may be availed of, if the second appeal remedy has not been availed by a party. Therefore, it is submitted that following the impugned amendment, no additional fora is sought to be established. The impugned amendment has enabled application of Chapter V to proceedings related to Record of Rights also. By virtue of the impugned amendment, a choice is now available for the petitioners either to prefer a second appeal or a revisional remedy.

9. Learned AAG further submitted that the orders passed by the Special Deputy Commissioners or the Deputy Commissioners exercising *suo motu* powers under Section 136(3) are original orders and therefore, it is the duty of the State to provide for remedial fora to test the correctness of the orders passed under Section 136(3) and

² (1996) 8 SCC 483

by the impugned amendment, the State Legislature has attempted to provide for such a forum to an aggrieved party. Learned AAG submitted that there is no substance in the contentions of the petitioners that the impugned amendment is manifestly arbitrary.

10. Learned AAG further submitted that it is a well settled law that Courts should make every effort to avoid conflicts between seemingly conflicting provisions and should attempt to interpret these provisions in the way that harmonizes them. Furthermore, in cases where it is impossible to completely reconcile inconsistencies between provisions, the courts must interpret them in a manner that gives effect to both provisions to the greatest extent possible. Harmonizing the contradictory provisions means preserving and not destroying any statutory provision or rendering it ineffective. It was submitted that the Apex Court, in the case of **BRITISH AIRWAYS PLC VS. UNION OF INDIA and OTHERS**⁴, has held that while interpreting the statute the court should try to sustain its validity and give such meaning to provisions which advance the object

⁴ (2002) 2 SCC 95

sought to be achieved by the enactment. The court cannot approach the enactment with a view to picking holes or to search for defects in drafting. It is a cardinal principle of construction of statute that effort should be made in construing the different provision so that each provision will have its play, and in the event of any conflict, a harmonious construction should be given. It is the duty of the court to make such construction of a statute as shall suppress the mischief and advance the remedy. It is also well settled that there is presumption with regard to the constitutionality of legislation.

11. Heard the learned Senior Counsel Sri.D.R.Ravishankar, learned Counsel Sri.K.Vijaykumar and other learned Counsels for the writ petitioners and learned AAG Sri.Kiran V Ron, for the respondent-State and perused the petition papers.

12. The statement of objects, insofar as to the amendment to Section 136 in the Karnataka Act No.6 of 2025, reads as follows:

"

Further, there are many instances where petitioners are approaching Hon'ble High Court of Karnataka against the orders passed by the Deputy Commissioners or Special Deputy Commissioners under Section 136(3) of the Karnataka Land Revenue Act, 1964, under writ jurisdiction. The High Court is also burdened with such cases in large number in writ petitions. The Karnataka Revenue Appellate Tribunal has been constituted in Chapter IV under Section 40 of the Karnataka Land Revenue Act, 1964, to hear revenue matters relating to appeal, revision and other proceedings as per provisions of Chapter V of the said Act.

Further,

Hence,

So, it is felt necessary that the appeal / review against the orders of the Deputy Commissioners should be heard by the Karnataka Revenue Appellate Tribunal. This will also reduce the burden of the Hon'ble High Court.

Therefore, it is considered necessary to amend the Karnataka Land Revenue Act, 1964 to provide for: -

- (i)*
- (ii)*
- (iii)*
- (iv)*

(v) Provision to enable the Karnataka Revenue Appellate Tribunal to hear the appeals against order passed under Sections 67(2) and 136(3) of the Karnataka Land Revenue Act, 1964. Therefore, after detail examination it is considered necessary to amend Section 67,

Section 95, Section 104 and Section 136 of the Karnataka Land Revenue Act, 1964 (Karnataka Act XII of 1964) and certain consequential amendments are also made.

Hence, the Bill.”

13. The Hon’ble Supreme Court has clarified the position regarding the hierarchy insofar as Chapter V of the Act is concerned, in **Puttahonnamma**². Chapter V which deals with every original order passed under the Act (except otherwise expressly provided for), it provides for an appeal under Section 49. Section 50 provides for a second appeal. Section 51 prescribes the period of limitation. Section 54 deals with the powers of the appellate authority, which includes further inquiry or to take additional evidence. Section 56 provides for revision, however, sub-section (3) of Section 56 was interpreted by the Apex Court and having regard to the words employed therein, that such powers cannot be exercised against any orders in respect of which an appeal under that Chapter has been preferred, it has been concluded that a revision will not lie if a second appeal has been preferred. Insofar

² (1996) 8 SCC 483

as Chapter XI is concerned, more particularly, Section 136 is concerned, a Full Bench of this Court in the case of **Sri.Ashok**¹, laid at rest the confusion prevailing as to whether a revision would lie in respect of an appellate order passed by the Assistant Commissioner under Section 136(2) of the Act, to the Deputy Commissioner under Section 136(3). The Full Bench held that the word 'final' appearing in Section 136(2) cannot take away the right of the aggrieved party to challenge the order of the appellate authority (Assistant Commissioner) before the Deputy Commissioner, who is the highest authority of the Revenue District/Court, by way of revision petition, before approaching the law courts. Nevertheless, having regard to the language employed in the provision and also bearing in mind the entire scheme of the Act, it was held that a remedy of revision can be availed of under Section 136(3) of the Act, before the Deputy Commissioner.

14. When that being the position, the impugned amendment which seeks to provide for another layer of

¹ ILR 2012 KAR 4571

forum to question the decision of the Deputy Commissioner under Section 136(3), does not overcome the decision of the Full Bench. With great difficulty, the Full Bench laid down the law that despite an appeal remedy being availed of, nevertheless, a revision before the Deputy Commissioner would still lie under Section 136(3). Under such circumstances, if the State Legislature sought to provide for one more layer of remedial fora, then, without clarifying the position, as to whether an appeal would thereafter lie or whether a second revision would lie before the Tribunal, the amending provision could not have been brought in.

15. The other problem with the impugned amending provision is that by reading Chapter V into Section 136(1), the objective sought to be achieved cannot be successfully achieved. This is because, the Apex Court in the case of **Puttahonnamma**² has clearly held that since sub-section (3) of Section 56 provides for revisional remedy only if the appellate remedy is not availed of, no revision will lie if a

² (1996) 8 SCC 483

second appeal under Section 50 was filed by the party. Therefore, even if we construe the appeal filed before the Assistant Commissioner as one under Section 49, then the aggrieved party may either file a second appeal under Section 50 or a revision under Section 56. Therefore, the position is no better than what is found in Chapter XI, where similar three tier remedy is available for the aggrieved party.

16. The interpretation given by the courts to similar provisions, be it Section 115 of the Code of Civil Procedure, Section 56 of the Karnataka Land Revenue Act, 1964, or Section 114 of the Haryana Cooperative Societies Act (See ***Shahabad Co op Sugar Mills Ltd., Vs. Special Secretary to Government, (2006) 12 SCC 404***) turn around the similar words employed viz., “in respect of which an appeal under this Chapter has been preferred” no revision shall lie. The impugned amendment is therefore in the teeth of the law laid down by the Apex Court in the case of **Puttahonnamma**².

² (1996) 8 SCC 483

17. On the other hand, the impugned amendment may be sustained insofar as the original orders passed by the Deputy Commissioners / Special Deputy Commissioners invoking *suo motu* powers conferred under Section 136(3). Section 49(c) provides for an appeal remedy to the Tribunal, if the original order is passed by the Deputy Commissioner. No such remedy is available in Chapter XI, where the original orders are passed by the Deputy Commissioners / Special Deputy Commissioners under Section 136(3) of the Act.

18. As a result, this Court proceeds to declare:

(a) The impugned Amending Act No.6 of 2025, the Karnataka Land Revenue (Third Amendment) Act, 2024, whereby Section 136(1) of the Karnataka Land Revenue Act, 1964, is amended will be applicable only in respect of the original orders passed under Section 136(3) by the Deputy Commissioners/Special Deputy Commissioners and not in respect of revisional orders passed by the Deputy Commissioners/ Special Deputy Commissioners.

(b) No further appeal or revision shall lie to the Tribunal against revisional orders passed under Section 136(3) of the Act.

(c) An order passed by the Assistant Commissioner under Section 136(2) of the Act may either be appealable or revisable before the Deputy Commissioner under Section 49(b) or under Section 136(3) of the Act.

(d) Option is also available for an aggrieved party to file a revision petition before the Tribunal under Section 56 of the Act, if no appeal or revision is preferred before the Deputy Commissioner in respect of an order passed by the Assistant Commissioner.

Ordered accordingly.

**Sd/-
(R DEVDAS)
JUDGE**